

Counsel for Defendant seeks to set the lodestar at \$12,715, exclusive of an additional \$1,925 for preparation of its reply and requests an additional \$90.49 for costs.

A trial court may not rubberstamp a request for attorney's fees, and must determine the number of hours reasonably expended. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.) Here, the total of 29.6 hours billed for the motion and 4.5 hours billed for the reply are excessive. The court finds it reasonable to reduce Attorney Graft's hours by 0.5 hours and Attorney Kim's hours by 3.4 hours. In addition, the court finds it reasonable to reduce the hours for the reply by 2.0 hours.

This results in 3.0 hours for Attorney Graft; 22.7 hours for Attorney Kim; and an additional 2.5 hours for Attorney Kim for the reply.

The court must then look at the hourly rate. The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Accordingly, following a careful review of the work required the court finds it reasonable to reduce the hourly rate for Attorney Graft to \$500 and that for Attorney Kim to \$350.

With the adjustment to the hourly rate, the lodestar is set at \$10,320. This represents 3.0 hours at \$500, 22.7 hours at \$350, with an additional 2.5 hours at \$350 for the reply.

Costs are awarded in the amount of \$90.49.

Total attorney's fees and costs are awarded in the amount of \$10,410.49.

The attorney's fees and costs are to be paid within thirty (30) days of this court's order.

26CV-03577 Louis Vasquez vs Laura Tirado

Order to Show Cause Re: Restraining Order

Appearance required.

26CV-03611 Linda Twyman vs. Crystal Villagomez

Order to Show Cause Re: Restraining Order

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Judge Pro Tem Alexandria Carl
Courtroom 9

627 W. 21st Street, Merced

Wednesday, July 22, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-05851	Two Jinn, Inc. vs. Jimmy Luna, et al.
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Motion for Judgment on the Pleadings

The unopposed motion for judgment on the pleadings by plaintiff Two Jinn, Inc. is GRANTED without leave to amend the answer. The Court takes judicial notice of its order filed on September 11, 2025, granting Plaintiff's motion for an order deeming true requests for admission and genuineness of documents that were propounded on Defendant. The Court finds that the complaint states facts sufficient to constitute a cause of action for breach of contract and that Defendant's deemed admissions negate any denials and defenses asserted in Defendant's answer. (See *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549.)

Judgment shall be entered forthwith in favor of Plaintiff and against Defendant. Plaintiff is entitled to costs as prevailing party. The Court will sign the proposed order and proposed judgment submitted with the moving papers.

The case management conference scheduled for August 7, 2026, is vacated.